

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,
vs.

Case No.: 2018 CA 000543
Division: "E"

MARC M. MOSZKOWSKI
Defendant.

**VERIFIED MOTION TO DISQUALIFY JUDGE AND FOR
REASSIGNMENT (Fla. R. Gen. Prac. & Jud. Admin. 2.330)**

Defendant, pro se, moves to disqualify the assigned judge from presiding over all further proceedings, including the pending Rule 1.530 and 1.540 matters, and states:

1) Standard

Under **Rule 2.330**, a judge shall be disqualified if the facts alleged would place a reasonably prudent person in fear of not receiving a fair and impartial hearing. The motion is verified and filed within 20 days of Final Judgment.

2) Specific, objective grounds

Without attacking motives, the following objective events create a well-

founded fear that further proceedings will not be fair or impartial:

1. **Prior, substantially related case / same judge / no recusal.** The same judge previously ruled adversely against Defendant in state court proceedings arising out of the same principals and nucleus of facts, then was assigned to this case and did not recuse.
2. **Dormancy / then wholesale rejection.** After Defendant moved to strike the complaint as a sham, the case lay dormant for over three years, then Defendant's filings were rejected en masse.
3. **Two-word denials and lack of engagement.** Approximately 182 filings over four years received either no analysis or were denied with a two-word order ("is DENIED"), including detailed, record-supported objections that bear directly on liability and damages.
4. **Travel requirement despite impossibility; default in absentia.** Although proceedings had been remote (Zoom), the Court compelled Defendant (a 71-year-old foreign resident with documented physical and financial constraints) to appear in person for trial, five-thousand miles from his home, then entered judgment when Defendant was unable to travel, effectively a default **in absentia**.
5. **Order contents exacerbate the concern.** The Final Judgment contains internally inconsistent remedies, relief beyond the

pleaded/prima facie proofs, and facial defects (e.g., nonspecific mandatory turnover, prejudgment interest with no on-record calculation), reinforcing the appearance that Defendant's record submissions were not considered.

3) Effect

Accepting the foregoing facts as true for legal sufficiency, a reasonable person would fear that post-judgment proceedings (rehearing, alteration/amendment, and 1.540 relief) will not receive fair, impartial consideration.

Relief Requested

- Disqualify the assigned judge from further participation in this matter;
- Reassign post-judgment proceedings to a different division judge;
and
- Grant such further relief as is just.

Verification (Fla. Stat. § 92.525)

I declare under penalty of perjury that the facts stated in paragraphs 2.1–

2.5 are true to the best of my knowledge and belief.

Date: September 8th, 2025

Marc Moszkowski, Defendant (pro se)

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

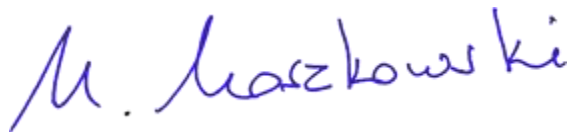
Respectfully submitted this 8th day of September, 2025

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 8th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.